



DEPARTMENT OF THE NAVY
HEADQUARTERS
NAVAL CRIMINAL INVESTIGATIVE SERVICE
27130 TELEGRAPH ROAD
QUANTICO VA 22134-2253

**BRAND NAME JUSTIFICATION
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION
(\$10,000 to SAT/\$250K)**

1. The supply identified below is brand name and competition is precluded for reasons indicated below.
2. **Restricted to the following source.** Provide original equipment manufacturer (OEM) name.

Manufacturer: Motorola Solutions
Manufacturer POC/Phone/Email: Dave Harris (703) 698-1222
Mfr. Address: 2811-A Old Lee Highway, Fairfax, VA 22031

Mfr. Resellers/Dealers: Various resellers

3. **Statutory Authority Permitting Other Than Full and Open Competition.**

The statutory authority permitting other than full and open competition is 10 U.S.C.3204(a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302-1(c) Only one responsible source and no other supplies or services will satisfy agency requirements, i.e. brand-name.

4. **Identification of the justification rationale.** This acquisition is being conducted under the authority and procedures of FAR 13.106-1(b)(1)(i) Soliciting from a single source, i.e. brand-name. The justification rationale for restricting competition is that Motorola Solutions is the OEM of the WAVE system, which is proprietary and only available via authorized resellers. This system is currently deployed across multiple NCIS Field Offices, which requires annual maintenance and licensing to keep the system operational. No other system can be used without significant operational delays due to time and money needed to procure, re-issue, and train users on another system,
5. **Description of the item or service required, statement that the requested material or service represents the minimum requirements of the government, the estimated cost, and required delivery date or performance period.**

The required brand name items are listed in the table below:

QTY	LICENSE #	DESCRIPTION
1	Part# TT3143 PoP: 04/21/2025 - 10/31/2025	Expansion to existing WAVE System
1	Part# TT06245 PoP: 04/21/2025 - 10/31/2025	WAVE Annual Release Update and Support - 1 Year
1	PoP: 11/01/2024 - 04/21/2025	Reinstatement fee

Required Start Date: 4/21/2025 – 10/31/2025.

6. Specific characteristics of the material or service that limit the availability to this/these source(s) (unique features, function of the item, etc.). Describe in detail why only this/these suggested source(s) can furnish the requirements to the exclusion of other sources. Provide a description of the market research conducted among schedule holders.

The proposed acquisition is to maintain the existing Motorola WAVE system which is necessary for NCIS TSFO mission communication needs. It is used to expand voice communication capabilities from radios to cell phone apps. It is advanced encryption standard (AES) encrypted and compatible with the U.S. Navy's Motorola Land Mobile Radio (LMR) system. The WAVE platform provides instant and simultaneous voice communications for multiple field offices across the agency allowing them to communicate with users via cell phone application when operating outside the footprint of a DoD radio system (i.e., off base).

Another system by Harris BeOn is a similar proprietary Push to Talk application that works within the Harris ecosystem, however NCIS does not have any Harris radios due the requirement by the Navy's Enterprise LMR Managers that Motorola radios be used on their system because it is a Motorola system and roughly 70% of NCIS' radios use the Navy ELMR system. Additionally, requiring NCIS to use multiple different manufacturer's radios would create an excessive burden on NCIS' sole Radio Manager to learn two different set of programming, each with their own manufacturer specific syntax.

FirstNet also has a Push to Talk application, but it is carrier specific to FirstNet phones, which limits NCIS' ability to interoperate with other agencies who are not using FirstNet as their cellular carrier. The Motorola WAVE system is able to work on any cellular carrier.

7. Other information to support a brand name buy: N/A

8. TECHNICAL OR REQUIREMENTS CERTIFICATION:

I certify that the facts and representations under my cognizance which are included in this justification form a basis for this justification are complete and accurate.

9. TECHNICAL COGNIZANCE:

[REDACTED] [REDACTED] [REDACTED]

[REDACTED] [REDACTED]

10. CONTRACTING OFFICER:

[REDACTED] _____

[REDACTED]